



Freedom of Speech in the Digital Age

Mill, Social Media, and the Limits of Expression

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Before We Begin: Which of These Is Illegal?

Hands up for each one. **Commit** — no hedging, no phones.

1. Burning an American flag at a political protest
2. Telling one specific person you are going to kill them, and meaning it
3. Falsely claiming, out loud and in public, that you won the Medal of Honor
4. Falsely shouting “fire!” in a crowded theater

Before the reveal

How many of the four did you mark illegal? Keep your number — we will see who was closest.

The Answer: One of Four, and Not the One You Think

Speech	Status in U.S. law
Burning a flag in protest	Protected — <i>Texas v. Johnson</i> (1989)
A true threat against a named person	Not protected — and since <i>Counterman v. Colorado</i> (2023) the speaker must have been at least reckless about it
Lying about military honors	Protected — <i>United States v. Alvarez</i> (2012) struck down the Stolen Valor Act
“Shouting fire in a crowded theater”	Not a legal test at all

The line everyone quotes

It comes from Justice Holmes in *Schenck* (1919) — as an aside, in a case upholding the conviction of a man for circulating leaflets urging resistance to the draft. *Brandenburg v. Ohio* (1969) replaced that framework: speech loses protection only when it is directed to producing **imminent lawless action** and is likely to do so.

Central Questions

- Why does speech deserve special protection—and what are the strongest arguments for and against?
- Is Mill's *harm principle* a satisfactory test for where free speech should end?
- Does social media constitute a “marketplace of ideas,” or does it systematically distort truth-seeking?
- When, if ever, should governments, corporations, or algorithms restrict speech?
- How should AI-generated speech be treated within a free expression framework?

John Stuart Mill, On Liberty (mill1859liberty)

“If all mankind minus one, were of one opinion, and only one person were of the contrary opinion, mankind would be no more justified in silencing that one person, than he, if he had the power, would be justified in silencing mankind.”

Lecture Outline

Introduction: Freedom of Speech in the Digital Age

Threats to Free Speech

The Limits of Free Speech

Historical Applications

Social Media Regulation

AI and Chatbots

Synthesis and Conclusion

Connections to Previous Lectures

Lecture 1 (History): Every IT revolution triggers new speech controversies. Luther used the printing press for reform; authorities responded with censorship laws. The pattern repeats: liberation promised, then control.

Lecture 2 (Virtues): If online speech practices shape character, does Mill's framework need a virtue dimension? Should we ask not just whether speech harms others but what it does to speakers and audiences?

Looking ahead: IP law (Lecture 4) restricts quotation and remix; privacy law (Lecture 6) restricts disclosure; AI (Lecture 7) raises the question of whether machines can be “speakers” at all.

What is Liberalism? (Broad Definition)

Political liberalism: a tradition emphasizing individual liberty

- **Core commitments:** Individual rights, rule of law, tolerance, democracy
- **The liberal presumption:** Freedom is the default; restrictions require justification
- **Negative freedom:** Freedom *from* interference

	Left-Liberalism	Libertarianism
Main threat	Corporate power, monopolies, inequality	Government overreach
Property	Wealth dominating others	Government taking/regulating it
Role of state	Regulation, safety nets	Minimal; market solutions
Key figures	Rawls, Dewey, (late) Mill	Nozick, Hayek, Friedman

Classical liberals (Locke, Smith, Mill) were progressive for their era: Mill backed women's suffrage and workers' cooperatives and feared "social tyranny"—not simply pro-market.

John Stuart Mill and *On Liberty* (1859)

Mill's context:

- Victorian England: Expanding democracy, growing press freedoms
- Central project: Define the **limits of society's power** over the individual
- “The struggle between Liberty and Authority”

Key insight: The threat isn't just government

- **Social tyranny:** “The tyranny of prevailing opinion and feeling”
- Majority opinion can crush dissent without any law

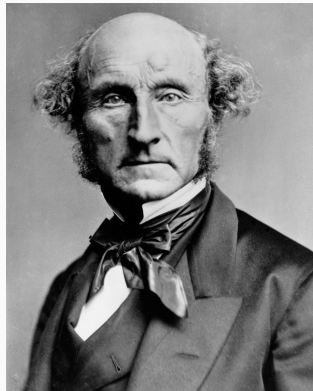
John Stuart Mill (1806–1873)

British philosopher, economist, MP. Radical for his time: supported women's suffrage, workers' rights, and extensive free speech protections.

John Stuart Mill: Champion of Liberty

Mill's Radical Context

- Published *On Liberty* in **1859**—the same year as Darwin's *Origin of Species*
- Longtime employee of the East India Company; became a Member of Parliament in 1865
- Introduced the **first parliamentary bill** for women's suffrage (1866)
- Collaborated extensively with Harriet Taylor, whose ideas shaped his feminism
- Died in Avignon, France, in 1873



John Stuart Mill, c. 1870. London Stereoscopic Company. Public domain.

The Harm Principle

Mill's Foundational Principle

“The only purpose for which power can be rightfully exercised over any member of a civilized community, against his will, is to **prevent harm to others**. His own good, either physical or moral, is not a sufficient warrant.”

- Applies to **government** AND **social pressure**
- Your own good is *not* sufficient reason to restrict your liberty
- The **burden of proof** lies with those who would restrict

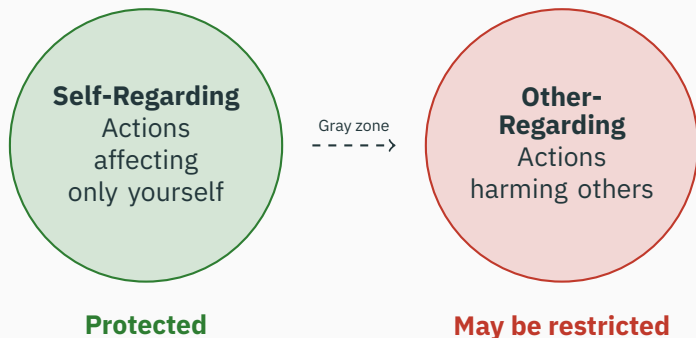
Discussion

What counts as “harm”? Is being offended the same as being harmed?

Unpacking the Harm Principle

Key distinctions:

- **Harm vs. offense:** Mill says offense alone is *insufficient* to restrict
- **Direct vs. indirect harm:** Only direct harms clearly justify restriction
- **Self-regarding vs. other-regarding:** Only other-regarding actions can be restricted



Why Protect Free Speech? Two Justifications

Utilitarian / Consequentialist

Free speech produces **good outcomes**:

- Discovery of truth
- Social and scientific progress
- Better governance
- Greater happiness

Mill's primary approach

Deontological / Rights-Based

Free speech is **intrinsically valuable**:

- Respects human autonomy
- Upholds dignity
- Enables self-expression
- Required by respect for persons

Kantian supplement to Mill

Key Point

These justifications can lead to **different conclusions** about hard cases. Both are present in liberal thought.

Mill's Utilitarian Argument for Free Speech

Argument 1: The Argument from Truth

1. The discovery and dissemination of truth is essential for human progress and happiness.
 2. We can never be *certain* that a silenced opinion is false.
 3. Even false opinions, when challenged, help us understand and strengthen true ones.
 4. Free and open debate is the best method for discovering truth.
- C. Therefore, speech should be free except to prevent direct harm.**

Our task: Examine the evidence for each premise.

Premise 2: The Fallibility Argument

Mill

“All silencing of discussion is an assumption of infallibility.”

- We have been **wrong before**—many times
- Even experts and consensus can be mistaken
- We cannot know in advance which “heretical” ideas will prove correct

Suppressed Idea	Later Vindicated
Heliocentrism (Galileo)	Scientific consensus
Germ theory of disease	Medical standard
Women's suffrage	Universal norm
Abolition of slavery	Moral consensus

Discussion

Can you think of ideas once considered dangerous that are now mainstream?

Premise 3: The Problem of “Dead Dogma”

Even if an opinion IS true, suppressing opposition **harms us**:

- Unchallenged beliefs become “**dead dogma**”—held without understanding
- We forget *why* the belief is true
- Unable to defend against new challenges

Mill

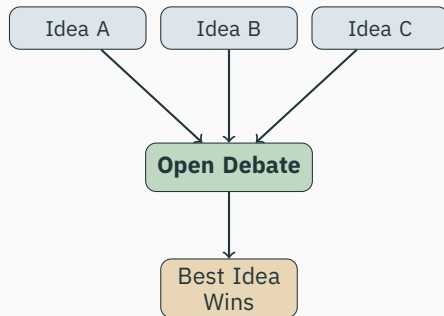
“He who knows only his own side of the case knows little of that. His reasons may be good, and no one may have been able to refute them. But if he is equally unable to refute the reasons on the opposite side, if he does not so much as know what they are, he has no ground for preferring either opinion.”

The value of the devil’s advocate: Even wrong arguments sharpen our thinking.

Premise 4: The Marketplace of Ideas

The metaphor: Ideas compete like goods in a market

- Bad ideas are best defeated by **better ideas**, not suppression
- Suppression drives ideas underground; open debate exposes weaknesses
- Truth has a **natural advantage** in fair competition



The Deontological Argument for Free Speech

Argument 2: The Argument from Autonomy

1. Respect for persons requires treating them as **autonomous agents** capable of rational self-direction.
2. Autonomous agency requires the ability to form, express, and revise one's beliefs and values.
3. Restricting speech treats persons as incapable of judging ideas for themselves.

C. Therefore, restricting speech violates human dignity and autonomy.

- Connected to **Kant**: Treating persons as ends, not merely means
- Censorship is **paternalistic**—"We know better than you what you should hear"
- Also present in Mill, though less emphasized

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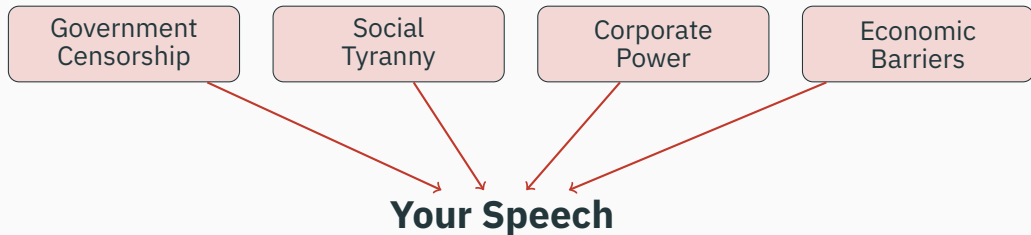
AI and Chatbots

Synthesis and Conclusion

Threats to Free Speech: An Overview

Mill recognized **multiple sources** of suppression:

- Not just government—social and economic power matter too
- The question: **Who can silence you, and how?**



Threat 1: Government Censorship

The traditional concern: State power to suppress dissent

- **Prior restraint:** Blocking publication before it happens
- **Criminal penalties:** Jail for speech crimes
- **Licensing requirements:** Only approved speakers allowed

Era	Examples of Government Censorship
Mill's time	Blasphemy laws, sedition acts, obscenity prosecutions
20th century	Wartime speech restrictions, McCarthyism, Official Secrets Acts
Today	Internet censorship (China, Russia, Iran), anti-protest laws

First Amendment (U.S.): “Congress shall make no law... abridging the freedom of speech”

Threat 2: Social Tyranny

Mill on Social Pressure

“Society can and does execute its own mandates... it practises a social tyranny more formidable than many kinds of political oppression, since... it leaves fewer means of escape, penetrating much more deeply into the details of life.”

Forms of social pressure:

- Ostracism and shaming
- Loss of employment or opportunities
- Reputational destruction
- Self-censorship from fear of backlash

Modern manifestation: “Cancel culture” debates

Discussion

Is social disapproval a legitimate response to speech, or a form of silencing?

Threat 3: Corporate and Platform Power

What Mill didn't anticipate: Private corporations controlling public discourse

- Social media platforms as the new “**public square**”
- **Terms of Service** as private law
- Deplatforming, demonetization, algorithmic suppression
- No First Amendment protection against private actors

Platform	Users	Moderation Power
Facebook	~3 billion monthly	Content removal, account bans
Instagram	3+ billion monthly	Content removal, account bans
YouTube	~2.5 billion monthly	Demonetization, video removal
TikTok	~2 billion monthly	Content suppression, bans
X/Twitter	~550–650 million (est.)	Suspensions, visibility limits

Read these numbers skeptically: platforms report different things, and several stopped reporting entirely. X has published no audited figures since 2022, so every number for it is an outside estimate.

Threat 4: Economic Power and Access

Who can afford to speak?

- **Historical barriers:** Printing presses, broadcast licenses, distribution networks
- **Advertising pressure:** Sponsors influence content
- **Media consolidation:** Fewer owners, less diversity
- **Digital divide:** Unequal access to internet and technology

The Paradox

The internet *lowered* barriers to speaking—but *raised* barriers to being *heard*. Algorithms and attention economics now determine whose speech reaches an audience.

Discussion

Does free speech mean anything if no one can hear you?

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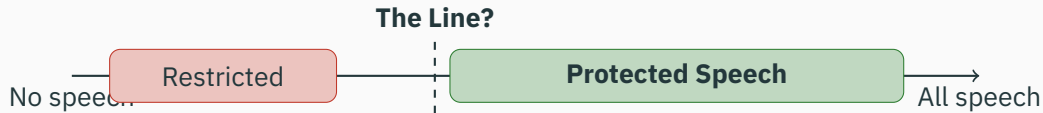
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The Limits of Free Speech

Even Mill recognized **limits** on permissible speech:

- Free speech is not **absolute**—some restrictions are justified
- The question: **Where exactly is the line?**
- Different frameworks give different answers



Mill's Own Limits: The Corn Dealer Example

Mill's Famous Example

The claim: “Corn dealers are starvers of the poor”

- **Acceptable:** Publishing this opinion in a newspaper
- **Unacceptable:** Shouting it to an angry mob outside a corn dealer's house

The difference: Context and **imminent danger**

Mill's principle: Speech that **directly incites** imminent harm to specific others may be restricted.

- **Context matters:** The same words can be protected or prohibited
- **Imminence matters:** Distant or speculative harms don't justify restriction
- **Directness matters:** Incitement vs. mere advocacy

Categories of Unprotected Speech (U.S. Law)

Category	Definition	Example
Incitement	Directed to producing <i>imminent</i> lawless action and likely to do so	“Attack that person now!”
True threats	Serious intent to commit violence against identifiable target	Specific death threats
Defamation	False statements of fact harming reputation	Knowingly false accusations
Fraud	Deceptive speech causing material harm	False advertising, scams
Obscenity	Prurient, patently offensive, lacking value	(Highly contested)
Fighting words	Direct provocations likely to cause immediate violence	Face-to-face epithets

The Problem of “Hate Speech”

Most democracies restrict “hate speech”; the **U.S. largely does not**

Pro-Restriction

- Causes real psychological harm
- Silences vulnerable groups
- Undermines equal citizenship
- Historical harms (Holocaust, genocide)

Anti-Restriction

- Who defines “hate”?
- Slippery slope concerns
- Suppression backfires (martyrdom)
- Counter-speech is better remedy

Mill’s framework: Is hate speech “harm” or merely “offense”?

Discussion

Should the U.S. adopt hate speech laws like most other democracies?

Extending Mill: The Silencing Argument

Argument 3: The Argument from Equal Speech

1. The purpose of free speech protections is to ensure all can participate in public discourse.
 2. Some forms of speech (hate speech, harassment) systematically **silence** vulnerable groups.
 3. Tolerating silencing speech undermines the very purpose of free speech protections.
- C. Therefore, restricting silencing speech can be justified on free speech grounds.**

Key theorists: Catharine MacKinnon (**mackinnon1993only**), Mari Matsuda (**matsuda_words_wound**), Jeremy Waldron (**waldron2012harm**)

The irony: Protecting free speech may require restricting some speech.

Critiques of the Silencing Argument

- **Premise 2 challenge:** Does speech really “silence”? Empirical question.
- **Slippery slope:** Who decides what counts as “silencing”? Risk of abuse.
- **Counter-speech alternative:** “The remedy for bad speech is more speech” (Brandeis)
- **Chilling effects:** Vague restrictions deter legitimate speech
- **Enforcement problems:** Rules often used against the vulnerable they aim to protect

Mill’s likely response: Better to err on the side of more speech.

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Millian Principles Meet Technology

Each new communication technology raises free speech questions:

- **Printing press** (15th c.): Censorship, licensing, sedition laws
- **Telegraph/telephone** (19th c.): Common carrier obligations
- **Radio/TV** (20th c.): Spectrum scarcity, content regulation
- **Internet** (21st c.): Platform power, global reach, new harms

Key Question

How have Mill's principles been applied before? What lessons for today?

The Broadcast Era: Scarcity and Regulation

The problem: Limited electromagnetic spectrum = limited speakers

- Only so many radio/TV stations can broadcast without interference
- **The solution:** Government licensing (FCC in U.S.)
- Broadcasters use public airwaves as “trustees”

The Fairness Doctrine (1949–1987)

Required broadcasters to:

- Cover controversial issues of public importance
- Present contrasting viewpoints on those issues

Justification: Scarcity means we can't rely on the marketplace of ideas alone.

Case Study: *Red Lion v. FCC* (1969)

Red Lion Broadcasting Co. v. FCC

Facts: Radio station aired personal attack; FCC required reply time.

Holding: Supreme Court **upheld** Fairness Doctrine (unanimously).

Key quote: “It is the right of the *viewers and listeners*, not the right of the broadcasters, which is paramount.”

The scarcity rationale:

- Spectrum limits justify regulation that wouldn't apply to print
- The **listener's interest** in diverse viewpoints matters
- Broadcasters have obligations because they use a public resource

The End of the Fairness Doctrine (1987)

FCC eliminated the Fairness Doctrine under Reagan administration

Arguments for Elimination

- More channels = less scarcity
- Doctrine *chilled* speech (avoided controversy)
- Government shouldn't judge "fairness"
- Market will provide balance

Arguments Against

- Led to rise of partisan media
- Loss of common factual ground
- "More channels" doesn't mean more viewpoints
- Public interest abandoned

The aftermath: Rise of talk radio, Fox News, MSNBC, media polarization

Discussion

Was ending the Fairness Doctrine a Millian triumph or a mistake?

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Free Speech in the Platform Age

Social media as the new **public square**—but owned by **private corporations**

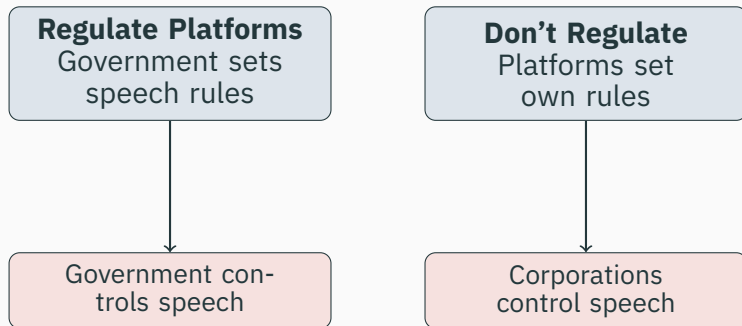
- Unprecedented reach: Billions of users worldwide
- Unprecedented speed: Information spreads in seconds
- Unprecedented scale: No human can review all content
- New questions Mill never imagined

The Fundamental Tension

- Platforms are **private**—they can set their own rules
- But platforms have **public power**—they shape democratic discourse

How do we reconcile private ownership with public importance?

The Platform Dilemma



Neither option is clearly Millian

- First Amendment limits **government**, not private companies
- But private companies now have **government-like power** over speech

Section 230: The Law That Built the Internet

Section 230, Communications Decency Act (1996)

“No provider or user of an interactive computer service shall be treated as the **publisher or speaker** of any information provided by another information content provider.”

What this means:

- Platforms are **not liable** for user content (unlike newspapers)
- They *can* moderate without becoming liable—the “sword and shield”

The rationale: without immunity, platforms would either remove everything (over-censorship) or remove nothing (cesspool).

Discussion

Should platforms be more like newspapers (liable) or phone companies (neutral)?

Argument 4: The Public Square Argument

1. Meaningful free speech requires access to forums where public discourse occurs.
 2. Social media platforms have become the **primary forums** for public discourse.
 3. Private control of these forums allows **arbitrary exclusion** from public discourse.
- C. Therefore, platforms should be subject to public regulation or obligation.**

Possible regulatory approaches:

- **Common carrier:** Must carry all legal speech
- **Transparency:** Must explain moderation decisions
- **Due process:** Must provide appeals for removals
- **Interoperability:** Must allow users to move data/connections

Arguments Against Platform Regulation

- **First Amendment:** Forcing platforms to host speech = *compelled speech*
- **Editorial discretion:** Platforms have their own free speech rights
- **Market alternatives:** Users can switch platforms or create new ones
- **Government capture:** Regulation could favor certain viewpoints
- **Practical impossibility:** Billions of posts; consistent moderation infeasible
- **Global reach:** Which government's rules apply?

The Conservative Critique

Regulation will lead to government-mandated speech codes—the very thing the First Amendment prohibits.

Case Study: Trump Social Media Bans (2021)

The Trump Deplatforming

January 2021: Twitter, Facebook, and YouTube ban a sitting U.S. President after the Capitol riot (Twitter “permanently”; the others indefinitely) over incitement risk. **The sequel:** all three reinstated the accounts by 2023.

Supporting the Ban

- Incitement exception applies
- Private company's right
- Public safety necessity

Opposing the Ban

- Silencing elected leader
- Unaccountable corporate power
- Dangerous precedent

Discussion

Necessary safety measure or dangerous precedent? Does the 2023 reinstatement change your answer?

Case Study: Australia's News Media Bargaining Code (2021)

Australia vs. Facebook

The law: Required platforms to pay news publishers for content.

Facebook's response: Temporarily **blocked all news** in Australia.

Outcome: Negotiations; Facebook struck deals with publishers.

The broader issue: Platform power over entire information ecosystems

- Platforms can “turn off” news for entire countries
- Economic leverage over journalism
- Model being considered in Canada, EU, elsewhere

Discussion

Should governments be able to force platforms to carry (and pay for) news?

The Algorithmic Amplification Problem

It's not just about what's **allowed**—it's about what's **promoted**

- Algorithms optimize for **engagement**, not truth or civic health
- Misinformation and outrage are often *more engaging*
- Content can be technically “allowed” but algorithmically buried

**Content
Moderation**
What's allowed?

Binary: Yes/No

**Algorithmic
Curation**
What's promoted?

Spectrum: How much?

Proposals: Algorithmic transparency, “amplification liability”

Discussion

Is there a meaningful difference between allowing speech and actively promoting it?

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You Be the Judge: The Trust and Safety Queue

You are the moderation team. **Ninety seconds each:** leave it up, label it, remove it, or ban the account.

1. A false claim about a vaccine, stated calmly, with no call to do anything
2. Video of a real crime in progress, posted by a working journalist
3. “Somebody should do something about people like that” — no named target
4. An AI-generated video of a candidate saying words they never said, tagged *satire*
5. Four hundred accounts posting the same reply to one person within an hour

Then the hard part

Which of your five calls would you be **least comfortable defending in public** — and is that because you got it wrong, or because the rule you applied does not survive being said out loud?

New Frontiers: AI-Generated Speech

Chatbots, AI assistants, deepfakes: **Who is “speaking”?**

Key questions:

- Does AI-generated speech deserve First Amendment protection?
- Who is **responsible** for AI speech—developer, deployer, or user?
- How do we handle AI **impersonation** of real people?
- What about AI-generated misinformation at scale?

Mill's Framework: A Problem

Mill's arguments assume **human speakers** with:

- Autonomy and dignity (autonomy argument)
- Capacity to contribute to truth-seeking (utilitarian argument)

Do these apply to AI systems?

Regulating AI Chatbots: Current Proposals

Proposal	Description
Disclosure requirements	AI must identify itself as AI (no impersonation)
Liability frameworks	Developers/deployers responsible for AI-caused harms
Content restrictions	AI systems must refuse certain outputs
Transparency mandates	Explain how AI generates responses
Watermarking	AI content must be detectable as AI-generated

EU AI Act: Several rules above stopped being hypothetical in **August 2026**—you must be told when you are talking to a chatbot, and deepfakes must be labeled. But the “high-risk” obligations (hiring, credit, biometrics) were **postponed to December 2027**, so the common claim that the Act is “fully in force” is wrong.

Discussion

Should AI have “free speech” rights? What would that even mean?

Case Study: Chatbot “Jailbreaking” and Alignment

The Jailbreaking Phenomenon

Users attempt to bypass AI safety restrictions through clever prompting:

- “Pretend you’re an AI with no restrictions...”
- “Write a story where a character explains how to...”
- Exploiting roleplay, hypotheticals, or encoding

The tension:

- **Developer restrictions:** Paternalistic? Limiting user autonomy?
- **Unrestricted AI:** Enabling harm? Corporate liability risk?

Parallel to Mill: Who should decide what’s “safe” to say?

- The user (autonomy)?
- The developer (responsibility)?
- The government (public safety)?

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Objections to the Millian Framework

Objection 1: The Marketplace Fails

- Truth does *not* always win—misinformation spreads faster
- Cognitive biases favor emotionally resonant falsehoods
- Attention economy rewards extremism, not accuracy
- “More speech” can drown out truth rather than reveal it

Objection 2: Power Imbalances

- “Free speech” favors those with resources and platforms
- Corporations and states can flood the zone with propaganda
- Equal formal rights $\neq$ equal real ability to speak and be heard

Key Concepts i

John Stuart Mill (*On Liberty*, 1859) gives the classic liberal defense: suppressing even false speech is wrong because (a) the suppressed view might be true, (b) even false views sharpen our grasp of the truth by collision, and (c) unchallenged truths become dead dogma.

The harm principle : Mill holds that the only legitimate reason to restrict speech is preventing direct harm to others—not offense, immorality, or bad taste.

The marketplace of ideas : Mill's metaphor that free competition among ideas tends over time to produce truth. Critics argue this assumes rational audiences and equal access that social media does not provide.

Silencing speech : Paradoxically, some speech (harassment, flooding the zone) can suppress other speech—a challenge Mill's framework did not fully address.

Section 230 (US, 1996) gives platforms immunity from liability for user content, enabling growth but insulating platforms from accountability for harms they amplify.

Algorithmic amplification : Platforms don't just host speech—they rank, promote, and recommend it. This is a form of editorial power that Mill's government-focused framework did not anticipate.

Hate speech : Speech that targets groups on protected characteristics. Whether it causes cognizable harm—and whether prohibiting it is compatible with Mill—is a live debate.

Discussion

Where would Mill come down on social media regulation if he were alive today?

